

HOUSE BILL No. 1214

DIGEST OF INTRODUCED BILL

Citations Affected: IC 33-39-4-1.

Synopsis: Arrest power. Provides that an investigator appointed by a prosecuting attorney has the same police powers within the state if the investigator was previously employed as a law enforcement officer or a federal enforcement officer for at least five years.

Effective: July 1, 2026.

Steuerwald

January 5, 2026, read first time and referred to Committee on Judiciary.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1214

A BILL FOR AN ACT to amend the Indiana Code concerning courts and court officers.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 33-39-4-1, AS AMENDED BY P.L.55-2022,
2 SECTION 7, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 1. **(a) As used in this section, "federal**
4 **enforcement officer" has the meaning set forth in IC 35-31.5-2-129.**

5 **(b) As used in this section, "law enforcement officer" has the**
6 **meaning set forth in IC 5-2-1-2.**

7 **(c)** The prosecuting attorney of any judicial circuit of Indiana
8 may appoint an employee, including an investigator, with the approval
9 of the county council or councils. An employee appointed under this
10 section works under the direction of the prosecuting attorney.

11 **(d)** An investigator appointed under this section who is not
12 covered by a crime insurance policy described in IC 5-4-1-20 shall give
13 bond in the sum of five thousand dollars (\$5,000).

14 **(e)** An investigator appointed under this section has the same
15 police powers:

- 16 **(1)** within the county authorized by law to all police officers; **or**
17 **(2)** within the state authorized by law to all police officers **if**



1 **the investigator was previously employed for at least five (5)**
2 **years as:**
3 **(A) a law enforcement officer; or**
4 **(B) a federal enforcement officer.**
5 ~~(d)~~ **(f)** In each judicial circuit the salary or other compensation to be
6 paid an investigator appointed under this section shall be set by the
7 county council or councils. A county council or councils may not
8 reduce the number of investigators or compensation of any investigator
9 without approval of the prosecuting attorney.

